

NOTICE OF PUBLIC HEARING BEFORE THE PLANNING COMMISSION

The Provo City Planning Commission will hold a public hearing on July 08, 2026 at 6:00 PM. Located at: Council Chambers 445 West Center Street. The items listed below will be discussed, and anyone interested is invited to participate and provide comment. Hearings can be viewed live and on-demand at: YouTube youtube.com/provocitygovernment and on Facebook facebook.com/provochannel17.

NOTICE OF PUBLIC MEETING BEFORE PROVO MUNICIPAL COUNCIL

On Tuesday, **August 11, 2026**, at 5:30 PM. the Provo Municipal Council will consider the items noted below with a star (*). Items noted on the agendas with a star require legislative action by the Municipal Council. Council agendas can be viewed at the Provo City Council web site on the Thursday prior to the Council meeting at <http://agendas.provo.gov>. For more information, call (801) 852-6120.

Unmarked items are administrative and require the approval only of the Planning Commission. Decisions on the unmarked items may be appealed to the Board of Adjustment by making application by 6:00 PM. **within 14 days of the Planning Commission decision.**

Study Session

1. Continued Review of Title 14 rewrite, Chapters 13-23 – Aaron Ardmore

Public Hearings

- | | |
|----------|---|
| Item 1 | Tuscanel Townhomes LLC requests Concept Plan approval for an 12-unit townhome project in a proposed HDR (High Density Residential) Zone, located at 313 E 200 N. Joaquin Neighborhood. Dustin Wright (801) 852-6414 dwright@provo.gov PLCP20250331 |
| * Item 2 | Tuscanel Townhomes LLC requests a Zone Map Amendment from the RC (Residential Conservation) Zone to the HDR (High Density Residential) Zone in order to develop an 12-unit townhome project, located at 313 E 200 N. Joaquin Neighborhood. Dustin Wright (801) 852-6414 dwright@provo.gov PLRZ20250330 |
| * Item 3 | Eric Langvardt requests an amendment to the General Plan Map to change the classification from Industrial (I) to Mixed-Use (M) for 21.6 acres of land as part of a mixed-use development plan, located approximately at 3657 S Sierra Vista Way. Spring Creek Neighborhood. Aaron Ardmore (801) 852-6404 aardmore@provo.gov PLGPA20260012 |
| * Item 4 | Eric Langvardt requests a Zone Map Amendment from the PIC (Planned Industrial Commercial) Zone to the MDR and CG Zones for 21.6 acres of land as part of a mixed-use development plan, located approximately at 3657 S Sierra Vista Way. Spring Creek Neighborhood. Aaron Ardmore (801) 852-6404 aardmore@provo.gov PLRZ20260006 |
| Item 5 | Eric Langvardt requests Concept Plan approval for a mixed-use development containing 90 condos, 168 townhomes, and approximately 10,000 sq. ft. of commercial space over 21.6 acres in proposed MDR and CG Zones, located approximately at 3657 S Sierra Vista Way. Spring Creek Neighborhood. Aaron Ardmore (801) 852-6404 aardmore@provo.gov PLCP20260011 |

Preceding the public hearing, there will be a Study Session at 5:00 PM. at the Provo Peak Conference Room, 445 W Center Street. The Study Session is open to the public; however, formal presentation of items, public comment and actions will be reserved for the public hearing at 6:00 PM.



PROVO CITY CORPORATION
DEVELOPMENT SERVICES DEPARTMENT
Planning Commission Agenda
July 08, 2026

To send public comments to Planning Commission members, email them at dspublichearings@provo.gov. Please submit public comment emails before 6:00 PM the day before the hearing. Additional information can be found at provo.gov/publiccomments.

Copies of the agenda materials, public hearing procedure, and staff reports are available the week of the hearing at a reasonable cost at 445 W Center Street, Suite 200, Provo between the hours of 7:00 AM. and 6:00 PM., Monday through Thursday. Agendas and staff reports are also generally available on the Provo City Development Services web site the week of the meeting at provo.gov/agendacenter.

Provo City will make reasonable accommodations for all citizens interested in participating in this meeting. If assistance is needed to allow participation at this meeting, please call the Development Services Department at (801) 852-6400 before 12:00 PM. the day before the meeting to make arrangements.

By order of the Provo City Planning Commission
Planning Secretary, (801) 852-6424



ITEM 1 Tuscanel Townhomes LLC requests Concept Plan approval for a 12-unit townhome project in a proposed HDR (High Density Residential) Zone, located at 313 E 200 N. Joaquin Neighborhood. Dustin Wright (801) 852-6414 dwright@provo.gov
PLCP20250331

APPLICANT:	Tuscanel Townhomes LLC
PROPERTY OWNER:	S & R TRIPLEX LLC and S & R 313 LLC
PARCEL ID:	05:033:0008 05:033:0009
ACREAGE:	0.45
CURRENT LEGAL USE:	Residential
GENERAL PLAN DESIGNATION:	Residential Conservation
CURRENT ZONE:	Residential Conservation
APPLICATION TYPE:	Administrative Decision – must be approved if it meets all city standards.

NEIGHBORHOOD FEEDBACK

Multiple neighborhood meetings have been held for the rezoning of this property; on May 26, 2022, another on March 30, 2023, and the most recent was on June 17, 2026. Some comments supported this type of development in this location, while others were opposed to it and referenced the efforts in the Joaquin Neighborhood Plan to protect the single-family designation in this area with a Residential Conservation designation in the future land use map. The project has decreased in density since the earlier neighborhood meetings, where a 17-unit apartment was proposed.

The Chair of the Central Neighborhoods District reached out to remind staff that there was strong opposition to this development as it deviates from the neighborhood plan.

PROJECT SUMMARY

The applicant has submitted a zone map amendment and concept plan applications for the property located at approximately 313 E. 200 N. to allow for the property to be developed for 12 new townhome units. The property is currently zoned as Residential Conservation (RC). This zone does not allow an increase in housing density, and this is why the applicant is seeking a rezone of the property to allow for the proposed redevelopment of the site. The applicant is looking for the property to be rezoned to the High Density Residential (HDR) zone to allow for the proposed development as this zone has the needed setbacks for the proposed development to work. The Medium Density Residential (MDR) zone would not allow the development to work because of greater setback requirements.

Because the HDR zone allows for more development potential, like density and building height, than what the applicant is proposing to do, they have proffered to do a development agreement.

This agreement would aim to limit the density, height, and require owner occupancy for each unit for at least one year after purchase.

The property surrounding this property is zoned Residential Conservation (RC).

STAFF ANALYSIS

Proposed Use

12 new residential townhomes.

Lot Standards

Required:

- (1) Minimum Lot Area: One-family attached: ten thousand (10,000) sf.
- (2) Housing density maximum: fifty (50) units per acre.
- (3) Minimum lot frontage: thirty-five (35) feet.
- (4) Minimum lot width: fifty (50) feet and Corner lot: seventy (70) feet.
- (5) Minimum lot depth: ninety (90) feet.
- (6) Maximum lot coverage by structures: seventy-five percent (75%).

Proposed:

- (1) Lot Area: 19,600
- (2) Housing density: 27 units per acre.
- (3) Lot frontage: 100 feet.
- (4) Lot width: 100 feet.
- (5) Lot depth: 200 feet.
- (6) Lot coverage by structures: 44% (8,605 sf).

Finding: Complies

Setback Requirements

Required: Front: 10' min 20' max; Side: 10'; Rear: 20'

Proposed: Front: 10', Side: 10', Rear: over 20'

Finding: Complies

Building Height and Distance

Required: 55' max.

Proposed: 42'

Finding: Complies

Parking and Access

Required: 26

Proposed: 25

Finding: Does not Comply. Code requires 25.5 and it up so 26. A parking reduction would be needed at project plan application.

Landscaping

Required: 1 tree per 2,000 sf of landscape area.

Proposed: 1,907 sf of landscape provided.

Finding: Complies (at project plan application)

Design Standards

Required: 14.34.287

Proposed: Designed to meet standards

Finding: Complies in concept.

APPLICABLE ZONING CODES

Provo City Code 14.14C – HDR Zone

Provo City Code 14.34.287 – Design Standards

POSSIBLE MOTIONS AND FINDINGS

The Planning Commission may make any of the following findings:

1. **Approve:** The proposal is consistent with city code.
Motion to approve the proposed concept plan for 12 new townhome units at approximately 313 E 200 N.
2. **Deny:** The proposal is not consistent with city code.
Motion to deny the proposed concept plan for 12 new townhome units at approximately 313 E 200 N.
3. **Continue:** New information presented at the public hearing or additional study needs to be done.
Motion to continue this item.

ATTACHMENTS

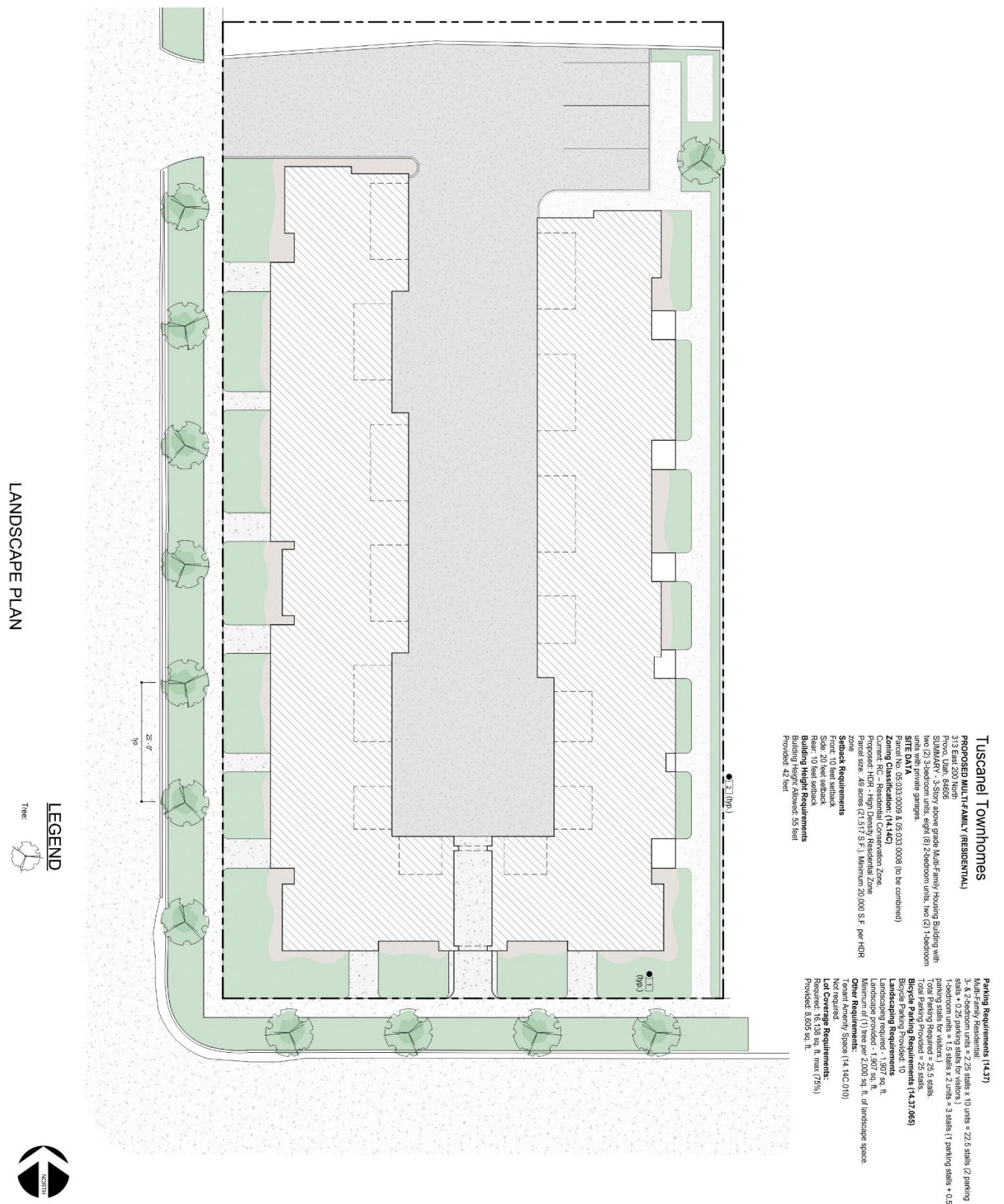
1. Area Map
2. Concept Plan
3. Landscape Plan
4. Floor Plans
5. Elevations

**ATTACHMENT 1 – MAP OF PROPERTY LOCATED AT
APPROXIMATELY 313 E 200 N**



[illegible]

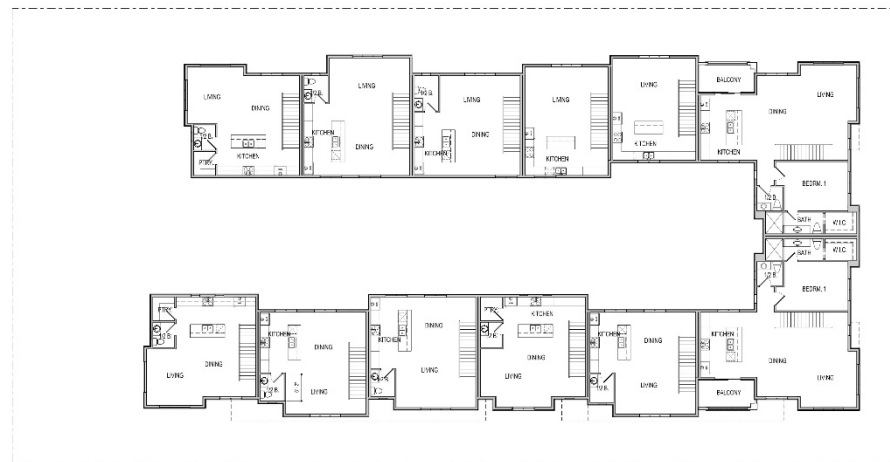
ATTACHMENT 3 – LANDSCAPE PLAN



ATTACHMENT 4 – FLOOR PLANS



GROUND LEVEL FLOOR PLAN

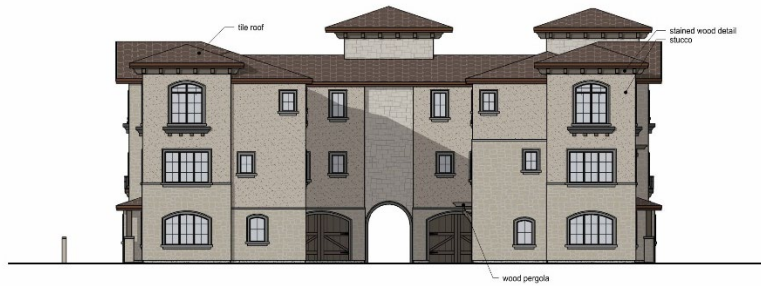


SECOND FLOOR PLAN



THIRD FLOOR PLAN

ATTACHMENT 5 – ELEVATIONS



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- *ITEM 2** Tuscanel Townhomes LLC requests a Zone Map Amendment from the RC (Residential Conservation) Zone to the HDR (High Density Residential) Zone in order to develop a 12-unit townhome project, located at 313 E 200 N. Joaquin Neighborhood. Dustin Wright (801) 852-6414 dwright@provo.gov
PLRZ20250330
-

APPLICANT:	Tuscanel Townhomes LLC
PROPERTY OWNER:	S & R TRIPLEX LLC and S & R 313 LLC
PARCEL ID:	05:033:0008 05:033:0009
ACREAGE:	0.45
CURRENT LEGAL USE:	Residential
GENERAL PLAN DESIGNATION:	Residential Conservation
CURRENT ZONE:	Residential Conservation
APPLICATION TYPE:	Legislative Decision – Planning Commission will make a recommendation to the City Council.

NEIGHBORHOOD FEEDBACK

Multiple neighborhood meetings have been held for the rezoning of this property; on May 26, 2022, another on March 30, 2023, and the most recent was on June 17, 2026. Some comments supported this type of development in this location, while others were opposed to it and referenced the efforts in the Joaquin Neighborhood Plan to protect the single-family designation in this area with a Residential Conservation designation in the future land use map. The project has decreased in density since the earlier neighborhood meetings, where a 17-unit apartment was proposed.

The Chair of the Central Neighborhoods District reached out to remind staff that there was strong opposition to this development as it deviates from the neighborhood plan.

PROJECT SUMMARY

The applicant has submitted a zone map amendment and concept plan applications for the property located at approximately 313 E. 200 N. to allow for the property to be developed for 12 new townhome units. The property is currently zoned as Residential Conservation (RC). This zone does not allow new units to be created, and this is why the applicant is seeking a rezone. The applicant is looking for the property to be rezoned to the High Density Residential (HDR) zone to allow for the proposed development as this zone has the needed setbacks for the proposed development to work. The Medium Density Residential (MDR) zone would not allow the development to work because of greater setback requirements.

In 2014, Provo City adopted the Joaquin Neighborhood Plan, which is part of the Provo City General Plan. The future land use designation in the Joaquin plan identifies this location as an area to not allow for increased density. That plan aims to increase density in the northern half of

the neighborhood, near BYU campus, and preserve the single-family residential character in the lower half of the neighborhood.

Because the HDR zone allows for more development potential, like density and building height, than what the applicant is proposing to do, they have proffered to do a development agreement. This agreement would aim to limit the density, height, and require owner occupancy for each unit for at least one year after purchase.

The property surrounding this property is zoned Residential Conservation (RC).

STAFF ANALYSIS

Before recommending an amendment, the Commission must find that the amendment serves the public interest and aligns with the General Plan, based on consideration of the following:

- (a) Public purpose for the amendment in question;

Applicant Response:

This amendment allows a long-held family property to transition into a high-quality, owner-occupied residential community that promotes homeownership, long-term residency, and reinvestment in central Provo.

The proposal expands housing opportunities within an established area already served by public infrastructure, schools, parks, transportation networks, and community services. The project is designed to provide housing for individuals and families who intend to live, invest, and contribute to the community, aligning with the General Plan's emphasis on housing availability, complete neighborhoods, and long-term community stability.

Staff Response:

A neighborhood plan was created that calls for this area to remain low density to help preserve this historic character and encourage higher density to be in the northern portion of the Joaquin Neighborhood closer to BYU Campus.

The properties are part of the National Register of Historic Places in the East Central Historic District. The home on the corner was built in 1880, and the 3-unit row house was built in 1885. Both properties are listed as contributing to the East Central Historic District and are eligible to be nominated to our local Landmarks Register. Properties on the National Register are not protected from demolition.

FINDING:

Does not comply with the Joaquin Neighborhood Plan designation of Residential Conservation.

- (b) Confirmation that the public purpose is best served by the amendment in question;

Applicant Response:

This proposal represents approximately four years of collaboration with City staff, neighboring property owners, and elected officials. Multiple concepts were evaluated and refined to arrive at a townhome community that balances neighborhood concerns with the City's goals for high-quality ownership housing.

The proposed development introduces a housing type that bridges the gap between detached single-family homes and larger apartment developments, expanding housing

choice within an established neighborhood. The amendment allows the property to contribute meaningfully to the City's housing supply while utilizing existing infrastructure and supporting the General Plan's direction for infill development.

Staff Response:

Preserving the historic character of this part of the neighborhood while providing increased density closer to BYU would serve the public. The existing structures would be eligible to receive historic rehabilitation tax credits. The proposed amendment would bring that increased density further south from campus.

FINDING:

Does not comply with the Joaquin Neighborhood future land use map that calls for residential conservation zone to remain.

(c) Compatibility of the proposed amendment with General Plan policies, goals, and objectives;

Applicant Response:

The proposal is consistent with the goals and policies of the General Plan, particularly those related to housing choice, homeownership opportunities, efficient use of infrastructure, and responsible infill redevelopment.

The project provides ownership housing in a central location, promotes long-term community investment through proposed deed restrictions, and reinvests in an established neighborhood. It supports the General Plan's broader vision of accommodating future residents within developed areas while maintaining high-quality design and contributing to complete, well-functioning neighborhoods.

Staff Response:

The Joaquin Neighborhood Plan identifies 500 North as the transition line for housing density. Increased density is planned for the area north of this transition line and residential conservation is planned for the areas south of 500 North. The plan aims to reduce development pressure on the homes in the lower half of the neighborhood by allowing much higher density closer to BYU campus where the density makes more sense.

FINDING:

Does not comply with the Joaquin Neighborhood future land use map that calls for residential conservation zone to remain.

In section E of chapter 3 in the Joaquin Neighborhood Plan, goal number 2 reads "Require that all future development complies with the future land use map".

(d) Consistency of the proposed amendment with the General Plan's "timing and sequencing" provisions on changes of use, insofar as they are articulated;

Applicant Response:

The surrounding area has evolved significantly over time, and the property's current context is substantially different than when earlier planning decisions were made. The amendment allows the site to respond to existing conditions while utilizing established

infrastructure and public services.

The proposal represents logical infill redevelopment within an already urbanized area and does not require expansion into undeveloped portions of the City. As such, it is consistent with the General Plan's principles of orderly, efficient, and fiscally responsible growth.

Staff Response:

Public Works looks at the General Plan and Neighborhood Plans as they plan infrastructure needs. Engineering review comment for this development reads: "Our existing Utilities cannot handle proposed HDR development. If this plan makes it to the project plan phase, then some sort of solution needs be proposed to address deficiency in our existing infrastructures to support this development."

FINDING:

Does not comply with Neighborhood Plan as it is proposing higher density than anticipated at this location.

(e) Potential of the proposed amendment to hinder or obstruct attainment of the General Plan's articulated policies;

Applicant Response:

The proposal is not expected to hinder General Plan objectives. The requested zoning flexibility is intended to achieve a better overall site plan—improving circulation, parking, open space, building placement, and neighborhood compatibility—rather than to maximize density or height.

The project remains below the allowable density and height standards while advancing key General Plan objectives related to housing availability, efficient land use, and infill development. The proposal reflects a balanced approach to growth that supports the City's long-term planning goals.

Staff Response:

In section E of chapter 3 in the Joaquin Neighborhood Plan, goal number 2 reads "Require that all future development complies with the future land use map".

FINDING:

Does not comply with the Joaquin Neighborhood future land use map that calls for residential conservation zone to remain, and the request is for High Density Residential.

(f) Adverse impacts on adjacent land owners; and

Applicant Response:

Minimizing impacts on surrounding properties has been a central focus throughout the planning process. Over approximately four years, the project has undergone multiple revisions to improve compatibility, site design, circulation, and neighborhood integration. The current proposal incorporates reduced density, reduced height, private garages, enhanced landscaping, and proposed owner-occupancy deed restrictions. There is also a willingness to formalize these commitments through a Development Agreement. These measures are intended to ensure the project integrates well with surrounding properties

and contributes positively to the neighborhood.

Staff Response:

The proposed change would allow for higher density housing in the area. There would be an increase in traffic. The existing homes and structures that contribute to the historic district would be demolished and the character of the block would be altered with the new development.

FINDING:

There would be impacts from the proposed change on adjacent land owners.

- (g) Verification of correctness in the original zoning or General Plan for the area in question.

Applicant Response:

The requested amendment does not suggest that the original zoning or General Plan designation was incorrect at the time it was adopted. Rather, it reflects how the surrounding area has evolved and how the property functions today.

The site is now surrounded by multifamily developments, including Apollo Apartments, Aspenwood Apartments, Fleur de Lis, and Casa Linda, which have substantially changed the character and context of the area. These changes have altered the relationship of the property to its surroundings, including significant impacts on privacy, with approximately 30 Apollo units directly overlooking portions of the property. The proposed amendment recognizes these changes and responds to current conditions and housing needs.

Staff Response:

The zoning is correct.

FINDING:

No issues.

- (h) In cases where a conflict arises between the General Plan Map and General Plan Policies, precedence shall be given to the Plan Policies.

Applicant Response:

While portions of the Joaquin Neighborhood Plan contemplate lower-intensity development patterns, this property occupies a unique location within an area that is already characterized by multifamily residential development.

After several years of refinement, the proposal reflects an effort to create the right project for this specific location—not the largest project possible. The project remains below the density and height permitted within the requested zone and utilizes the zoning primarily to achieve improved setbacks, site design, and compatibility.

The proposal also includes proposed owner-occupancy deed restrictions and a willingness to formalize commitments through a Development Agreement. When viewed in the context of the General Plan's broader policies, supporting housing choice, infill redevelopment, efficient use of infrastructure, and sustainable growth, the amendment is consistent with the intent and long-term vision of the General Plan.

Staff Response:

No issues with the maps and related policies.

FINDING:

No issues.

APPLICABLE ZONING CODES

Provo City Code 14.14C – High Density Residential (HDR)

POSSIBLE MOTIONS AND FINDINGS

The Planning Commission may make any of the following findings:

1. **Recommend Approval:** The proposal is consistent with the General Plan. Motion to recommend approval to the City Council with the condition that a development agreement restricts the height and density to what has been proposed in the concept plan.
2. **Recommend Denial:** The proposal is not consistent with the General Plan. Motion to recommend denial to the City Council for the proposed zone change.
3. **Continue:** New information presented at the public hearing or additional study needs to be done.
Motion to continue this item. (State findings/reasons)

ATTACHMENTS

1. Map of Property Located at Approximately 313 E 200 N
2. Map of Existing Zoning
3. Future Land Use Map of the Joaquin Neighborhood Plan
4. Neighborhood Meeting Minutes – May 26, 2022
5. Neighborhood Meeting Minutes – March 30, 2022
6. Neighborhood Meeting Minutes – June 17, 2026

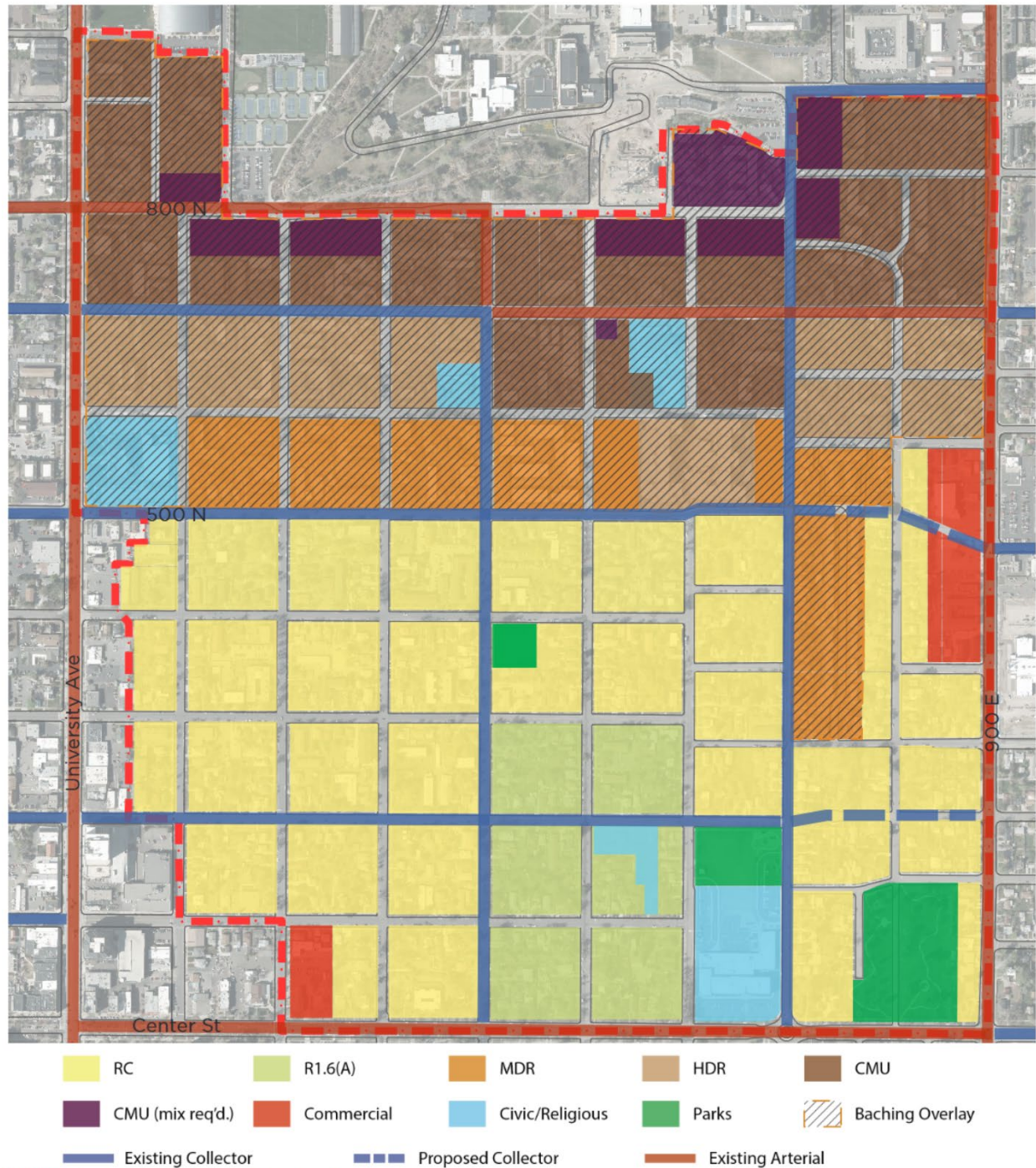
**ATTACHMENT 1 – MAP OF PROPERTY LOCATED AT
APPROXIMATELY 313 E 200 N**



ATTACHMENT 2 – MAP OF EXISTING ZONING



ATTACHMENT 3 – FUTURE LAND USE MAP FROM THE JOAQUIN NEIGHBORHOOD PLAN



ATTACHMENT 4 – NEIGHBORHOOD MEETING MINUTES FROM MAY 26, 2022



Neighborhood Meeting Report

An online version of this form is available at neighborhood.provo.org (on right-hand side of page)

Neighborhood Joaquin Meeting Date 5-26-22

File # PLRZ20220159

Meeting conducted by (name and title): Leo Lines Joaquin Neighborhood Chair

Meeting location: Library @ the academy Bullock Room 309 Number in attendance: 34 3 city council members
1 staff

Applicant name or project description: The Denali multi family student housing project

Was applicant or their designee in attendance at this meeting? Yes No Did applicant contact you within 7 days of the notice of application (as required by Provo City Code)? Yes No

Have other neighborhood meetings been held on this project? No

Relevant history of property/area:

With the growth of BYU & UVU this neighborhood been turned into a multi family student neighborhood. The number of full time residents has rapidly declined.

Other methods of outreach (note number of residents informed and input received)

Facebook group:

Email:

Phone calls:

Face-to-face (in person):

Fliers: By the developer

Overall responses

Positive/in favor: 1 person was in favor that spoke up

In favor if some changes were made: 5-6

Negative/against: most comments were negative

How many of each type of response came from those who live closest to the project:

90% there were some in attendance that did not speak during the meeting

Favorable feedback (be specific):

only build 6 units
couples instead of singles

Concerns raised (be specific):

Needs to be north of 700 N or 500 N
will start a bunch of huge developments
does not fit the Neighborhood plan
Because a former general Authority owned the home previously there should be no changes

doesn't fit the neighborhood
not enough parking
project too big for the neighborhood
does not match neighborhood architecture.

Has the applicant worked with the neighbors to address their concerns, if any?

I do not know

Are there specific parts of the City Code, General Plan, or the neighborhood/area plan that should be considered?

Conclusions/summary from Neighborhood Chair:

The meeting was mainly attended by the residents that live closest to the project. Those attending were overwhelmingly opposed to any development with ~~an~~ increased density that was already there. With the students gone for the summer & Landlords feeling like they do not have a say concerning their property's 34 people are not even 1% of the residents of the neighborhood. There were mainly 12 people that made most of the comments.

Date of this report:

5-30-2022

Submit this form to neighborhoodprogram@provo.org within five (5) days of the meeting date.

ATTACHMENT 5 - NEIGHBORHOOD MEETING MINUTES FROM **MARCH 30, 2023**

Neighborhood District 5 Meeting, March 30, 2023

21 residents signed in as attending, 1 attended on Zoom. The meeting was held in the council chambers because the police were using the community room.

Executive members in attendance included Quinn Petersen, David Harding, Leo Lines, Sariah Hillam, Jason Ream, Dylan Cindrich and Shannon Bingham. Chair Laura Leavitt conducted. City Council member Rachel Whipple also attended.

Land Use Items

- a. **Denali Project** Taryn Denali requests approval of a Zone Map Amendment from the RC (Residential Conservation) zone to the HDR (High Density Residential) zone in order to build a new **17**-unit apartment building, located at 313 East 200 North. Joaquin Neighborhood.

City Staff mentioned that this project is under staff review and will still need to go up before the Planning Commission.

Taryn made an extensive presentation of the project, focusing on the Italian design inspiration from her parents and the upgrade in style that was made after feedback in a previous Joaquin Neighborhood meeting. She stated that there would be **23** units, 20 of which would be 3 bedrooms and several 1 bedrooms in order to encourage long-term residency. There would be lots of trees, a central courtyard with a fountain, wrought iron flowerboxes, and underground parking for the three-story project. There would be contractual limitations on parking to allow for the parking variance that the project would require. This would all sit on less than an acre of ground, so they are working on updates with public works and are developing an agreement with Provo city to build nothing more, nothing less. She felt that the current residential conservation zoning inhibits restoration of old houses fallen into disrepair, and showed pictures of the rundown triplex and house currently on the property that her family has owned for 40 years. A friend who walked around the area noted that there are already a number of large complexes nearby. She ended with her mother's motto of "siempre familia".

Time was opened up for comments, and for the first few Taryn remained at the front to respond.

David Keller was the first to comment. He lives ½ block from the proposed development and objected that Taryn had quoted only parts of his statement from the earlier Joaquin meeting, where 70% had been opposed to a building that large on that property. He reminded her that they had been through this before in a long meeting and he was still not convinced because it is too dense for this part of Joaquin. He thought it would be beautiful farther north. He would be okay with a modest increase, but going from the current 4 units to 23 is not what the Joaquin plan says. He was surprised this project keeps coming back. Some things were better but not for the long term.

Sam Oman from Maeser commented next, pointing out that this still looked like it was designed for short term rather than long term student housing. He noted the property has not been maintained by the owners to this point and that the owners will not be changing with the new project.

Spencer near the Bright Building mentioned that it has been hard looking to find a place to live. He thought the project design actually looks nice and was wondering what type of price range they were looking at.

Staff mentioned that this part of the meeting was meant for comments to the board so they could report to the Planning Commission; that if residents had questions for the developer they should talk after the meeting. Taryn sat down and other residents continued with comments.

Zachary Chamberlain mentioned that he lived here in Provo until COVID and is now in Layton. He recently got a job here in Provo and would like to live here but has had a hard time finding a place. He thinks that the design looks like a huge upgrade. He has lived in places in Joaquin where the owners did not upkeep the property and thinks this could help out the community.

Shannon Bingham from Timpanogos spoke strongly that she knows how long Joaquin worked on their neighborhood plan. They drew the line at 500 North for continued building of high density to the north, with the current residential conservation zone to the south of that line. The placement of this type of density is directly counter to that decision. She knows of 20 houses in her neighborhood of that same type that was shown to be dilapidated that have been restored. She asked whether the proposal would really allow residents to live long term while, taking away the opportunity for 3 lots that could be used by longer term residents. She noted that in her neighborhood 9% are homeowners and 91% are rentals, and that they really need the long-term residents.

Dylan Cindritch thought it was a great project, as the cheapest home you can find now in Provo is \$400K for a fixer upper.

Kim McIntyre lives a block away from the proposed development. He is concerned with the parking issue, as heavy traffic was responsible for a roundabout crash just this last week at 200 East and 200 South. The cost for each apartment is going to be a lot. Many will not be able to afford to live there, even though it is being sold as more affordable housing. It looks nice, but is not right for the neighborhood.

Leo Lines from Joaquin noted that 20 of the units will have 3 bedrooms, and that it will be possible to rent each to 3 singles. He talked about angled parking out front for visitors, and that you can't control how many cars a tenant will have, since they will bring more and park two blocks away.

(Attendee) mentioned that he owns houses south of campus and in his experience, he can't keep yards nice. The houses are old and will never be a place to keep it up with too many students around. He doesn't think hanging on to the houses makes sense.

It was noted that no floor plans for the apartments in the project were included in the presentation.

An opinion poll of those in attendance showed 15 in support and 8 opposed. This totaled more than the number of residents who signed in as attending, even though Laura mentioned three times that only people currently residing in District 5 were allowed to vote.

Quinn Petersen asked about the setup for these meetings, including topics for neighborhood feedback and feedback polls. Leo proposed that development and staff present and then open up to board members to comment, and then to open to other attendees. Staff responded that the neighborhood executive board is not a legislative body; it is here for feedback. If the project goes forward, it first goes to the Planning Commission and then to the City Council, who makes the actual decision.

ATTACHMENT 6 NEIGHBORHOOD MEETING MINUTES FROM JUNE 17, 2026

Update on a proposed Zone Change from RC (Residential Conservation) to HDR (High Density Residential) for a 12-unit townhome project at 313 East 200 North in the Joaquin Neighborhood – Planning Supervisor Aaron Ardmore

Planning Supervisor Aaron Ardmore presented an update on a proposed zone change at 313 East 200 North in the Joaquin Neighborhood, from RC (Residential Conservation) to HDR (High Density Residential), to accommodate a 12-unit townhome development. Ardmore noted this is a revised iteration of a previously presented project; earlier proposals had sought approval for over 20 apartment units, whereas the current proposal has shifted to townhomes. The HDR zone is being sought primarily to address setback requirements, as the actual density proposed is well below what HDR would allow. The item was previously continued by the Planning Commission due to the applicant's scheduling conflict and will go before the Planning Commission on July 8th and to the City Council in August. A waterline upgrade to an 8-inch main is included as part of the project's infrastructure improvements.

Resident feedback:

- A longtime resident offered detailed historical context, noting that the RC zone was established following a City Council moratorium on high-density development in South Joaquin, in direct response to earlier projects that replaced historic single-family homes with multifamily structures. The resident argued that the applicant's characterization of the surrounding area as having "evolved" toward high-density housing was inaccurate, as the developments cited predated the RC zone. Staff's report was cited favorably, noting that it found the proposal non-compliant with the Joaquin Neighborhood Plan and the future land use map on multiple points.
- Several others expressed their disapproval of the proposal based on the grounds that the proposal was incongruent with the Joaquin Neighborhood Plan and the RC zone in South Joaquin.
- A Zoom attendee was in support of the proposal, noting that townhomes seemed like a good fit for the area and expressed support for housing diversity and density.
- One resident questioned the aesthetics of the design, describing it as uniform and unwelcoming.

- A resident called for any future applicants to be required to disclose projected water usage for their developments.
- A non-resident landlord expressed general support for the project's intent, noting the deed restrictions and infrastructure upgrades, while acknowledging the planning concerns raised.
- A question was raised regarding owner-occupancy enforcement, to which Ardmore responded that the city uses deed restrictions and withholds rental licenses for one year following a change of ownership, with the one-year period resetting upon each subsequent conveyance.
- Councilor Whipple addressed water usage concerns, clarifying that indoor water use remains within the municipal system and does not represent a net loss. She further noted the city is currently engaged in a strategic planning process related to water use recommendations and is in the process of selecting a consultant to conduct a comprehensive review of zoning enforcement procedures.
- A question was raised regarding whether the project includes any affordable or replacement housing units for displaced residents; Ardmore confirmed there is no current requirement to that effect.
- Regarding Denali project: Part of the benefit of townhomes over apartments is access to private outdoor space, which I did not see in this project. If we are talking about this being good housing for “families,” families want outdoor space. This project removes several old trees and does not provide much space to support plants. [This comment was submitted later in the suggestion box.]

Attendees were encouraged to submit written comments to the Planning Commission prior to the July 8th hearing and to the City Council prior to any subsequent council action.

-
- *ITEM 3** Eric Langvardt requests an amendment to the General Plan Map to change the classification from Industrial (I) to Mixed-Use (M) for 21.6 acres of land as part of a mixed-use development plan, located approximately at 3657 S Sierra Vista Way. Spring Creek Neighborhood. Aaron Ardmore (801) 852-6404
aardmore@provo.gov PLGPA20260012
-

APPLICANT:	Eric Langvardt
PROPERTY OWNER:	Springville Rising LLC
PARCEL ID:	23:014:0013; 47:358:0003; 23:002:0041
ACREAGE:	21.6
CURRENT LEGAL USE:	Vacant
GENERAL PLAN DESIGNATION:	Industrial (I)
CURRENT ZONE:	Planned Industrial Commercial (PIC)
APPLICATION TYPE:	Legislative Decision – Planning Commission will make a recommendation to the City Council.

PROPERTY HISTORY

The three properties included in this proposed project make up the southeast point of Provo City and have been zoned PIC since their inclusion into city boundaries. These vacant properties have no history of building permits or legal established uses but have been used for construction storage at times over the past twenty years.

NEIGHBORHOOD FEEDBACK

This proposal was introduced to the East District Neighborhood (formerly District 2) on October 15, 2025. The minutes of that discussion are attached to this report (attachment #3) and include resident concerns regarding lack of economic/sales tax benefit to Provo, balance of land uses, traffic, amenities, public benefits, and Provo identity.

PROJECT SUMMARY

The proposed project is a part of the vision from Clyde Companies that flows through Springville City and Provo City attempting to deliver a walkable, mixed-use corridor. The Provo portion of proposal includes approximately 9,960 square feet of retail space across 2.42 acres of proposed General Commercial (CG) Zoning, 90 condominium units and 168 townhome units over 19.2 acres of proposed Medium Density Residential (MDR) Zoning, and associated parking and amenity areas.

This proposal includes the concept plan referred to above, a Zone Map Amendment from the PIC Zone to the MDR and CG Zones, and this General Plan Map Amendment to change the designation of the property from the Industrial (I) designation to the Mixed-Use (MU) designation.

STAFF ANALYSIS

Before recommending an amendment, the Commission must find that the amendment serves the public interest and aligns with the General Plan, based on consideration of the following:

(a) Public purpose for the amendment in question;

Applicant Response: “The requested amendment is intended to better align the site’s development potential with the goals and policies outlined in the City’s General Plan and to support a more cohesive land use pattern within the surrounding context.”

Staff Response: The public purpose of providing a mix of uses in the area matches better to the surrounding current and future commercial and residential uses in Springville than it does with the adjacent industrial uses in Provo. However, amending the General Plan map is needed to advance the proposed zone change and development plans as described by the applicant above.

FINDING: Meets standard.

(b) Confirmation that the public purpose is best served by the amendment in question;

Applicant Response: “The current Planned Industrial Commercial (PIC) zoning district primarily encourages industrial and large-scale commercial uses characterized by auto-oriented site layouts and limited pedestrian connectivity. These development patterns are inconsistent with the projects goals for creating a mixed-use, human-scaled urban environment that supports residential livability and economic diversity. Reclassifying the property to MU will allow for a more compatible land use framework that integrates residential, commercial, and civic spaces, thereby advancing the City’s objectives for sustainable growth, urban vitality, and a higher overall quality of life.”

Staff Response: The current designation would only allow industrial uses to continue to be developed, while the proposed amendment could facilitate what the applicant has described above.

FINDING: Meets standard.

(c) Compatibility of the proposed amendment with General Plan policies, goals, and objectives;

Applicant Response: “The proposed amendment supports and advances the overarching goals and policies of the Provo City General Plan by:

- Encouraging mixed-use development patterns that integrate residential, commercial, and recreational opportunities within a cohesive urban framework that provides a sense of community and vibrant economy
- Fostering a sense of place and community identity through dynamic and safe public spaces for city residents

- Providing additional housing to build on the commitment to make Provo a desirable and attainable place to live
- Promote a connected network of streets, pedestrian trails, and bike lanes to efficiently move people and vehicles to enhance neighborhood accessibility and promote a dense and walkable community.”

Staff Response: The applicant has cited goals from the General Plan policies above from chapters 3, 4, 5, and 6 of the General Plan; and chapters 3 and 5 from the Southeast Neighborhoods Plan.

FINDING: Meets standard.

(d) Consistency of the proposed amendment with the General Plan’s “timing and sequencing” provisions on changes of use, insofar as they are articulated;

Applicant Response: No response.

Staff Response: There are no provisions for timing and sequencing articulated for this.

FINDING: Meets standard.

(e) Potential of the proposed amendment to hinder or obstruct attainment of the General Plan’s articulated policies;

Applicant Response: “the amendment affects only a limited portion of the existing PIC district, ensuring that the broader industrial and commercial land use objectives of the area remain intact. This targeted change provides an opportunity to diversify the local economic base while enhancing the overall urban fabric of the community.”

Staff Response: The proposal will reduce the available land for industrial development in the city. The Planning Commission and City Council will need to evaluate the benefits of this proposal against the economic development goals and policies related to industrial commercial development.

FINDING: May meet standard, depending on priorities.

(f) Adverse impacts on adjacent landowners; and

Applicant Response: No response.

Staff Response: Adjacent landowners include industrial users and vacant industrial land to the west and north in Provo, and residential and commercial uses to the east and south in Springville. Increased traffic in this area could be seen as an adverse impact of this proposal, but the traffic impact study has illustrated improvements to mitigate that.

FINDING: Meets standard.

(g) Verification of correctness in the original zoning or General Plan for the area in question.

Applicant Response: No response.

Staff Response: Staff have confirmed the General Plan and Zone Map designations are correct.

FINDING: Meets standard.

(h) In cases where a conflict arises between the General Plan Map and General Plan Policies, precedence shall be given to the Plan Policies.

Applicant Response: No response.

Staff Response: This is a map amendment, so policies have taken precedence.

FINDING: Meets standard.

POSSIBLE MOTIONS AND FINDINGS

The Planning Commission may make any of the following findings:

1. **Recommend Approval:** The proposal is consistent with the General Plan.
(Planning Commission recommends approval to the City Council of a General Plan Map Amendment from the industrial designation to the mixed-use designation for 21.6 acres of land located at 3657 S Sierra Vista Way)
2. **Recommend Denial:** The proposal is not consistent with the General Plan.
(Planning Commission recommends denial to the City Council of a General Plan Map Amendment from the industrial designation to the mixed-use designation for 21.6 acres of land located at 3657 S Sierra Vista Way)
3. **Continue:** New information presented at the public hearing or additional study needs to be done. *(The Planning Commission continues this item (state reasons))*

ATTACHMENTS

1. Current General Plan Map
2. Applicant Statement
3. Neighborhood Meeting Minutes

ATTACHMENT 2 – APPLICANT STATEMENT

Springville Rising General Plan Application Written Responses– Provo

- **Description of the proposed amendment.**

This application requests a zoning map amendment to reclassify the subject property from the existing Planned Industrial Commercial (PIC) designation to the proposed Mixed-Use (MU) zoning district. The requested amendment is intended to better align the site's development potential with the goals and policies outlined in the City's General Plan and to support a more cohesive land use pattern within the surrounding context.

- **Statement on the potential use of the property.**

The proposed development, known as Springville Rising, envisions a pedestrian-oriented, mixed-use district that fosters a compact and walkable environment where residents and visitors can live, work, shop, dine, and recreate within close proximity. The project will include alley-loaded townhomes, medium-density residential housing, and neighborhood-scale commercial uses such as retail and restaurant establishments. An interconnected network of open spaces and pedestrian corridors will serve as the framework for the community, providing access to recreational amenities and natural features for both residents and the broader public. The design intent is to establish a vibrant and sustainable district that enhances connectivity, promotes social interaction, and supports a balanced mix of land uses.

- **Justification for why the existing designation is no longer appropriate.**

The current Planned Industrial Commercial (PIC) zoning district primarily encourages industrial and large-scale commercial uses characterized by auto-oriented site layouts and limited pedestrian connectivity. These development patterns are inconsistent with the projects goals for creating a mixed-use, human-scaled urban environment that supports residential livability and economic diversity. Reclassifying the property to MU will allow for a more compatible land use framework that integrates residential, commercial, and civic spaces, thereby advancing the City's objectives for sustainable growth, urban vitality, and a higher overall quality of life.

ATTACHMENT 3 – NEIGHBORHOOD MEETING MINUTES

Proposed mixed use (residential and commercial) development project at State Street & Mountain Vista Parkway in the Spring Creek Neighborhood – Ryan Christofferson of Clyde Capital Group

Neighborhood Coordinator Rachel Breen noted this project is still in the idea phase.

Ryan Christofferson of Clyde Capital Group presented plans for approximately 40 acres on Provo's southeast corner extending into Springville, with half in each city. The overall vision includes a retail core with amenities like an ice rink and event lawn space to bring community together with retail, connected by pedestrian-friendly design to integrate the community with retail space.

On the Provo side, plans include 123 mid-density residentials (condominiums) in the northeast corner, surrounded by 174 townhomes, all for-sale products rather than rentals, plus 16,000 square feet of commercial space on the south end. The property is currently zoned industrial, and they seek mixed-use designation.

When asked for orientation, Christofferson clarified the location is west of State Street. Regarding retail type, he emphasized heavy food and beverage focus rather than general retail. The ice rink would be located in the area marked "community commons."

A South Provo resident expressed concern that all retail appears on Springville's side, meaning it won't appear in Google searches for South Provo and provides no sales tax benefit to Provo. Christofferson explained market demands drove the location at the busy 1400/State Street intersection, but acknowledged the concern about Provo getting all residential while Springville gets retail. He noted both cities are working on an interlocal tax-share agreement through their economic developers and city managers.

When asked if the ice rink would compete with Provo's Peaks Ice Arena, Christofferson said they just want an amenity bringing people to the food and beverage retail space for gatherings and events, mentioning possibilities like March Madness viewing on the event lawn.

Multiple residents raised concerns about sales tax revenue, with one directly asking what benefit Provo receives beyond condominiums when residents will shop in Springville and an ice rink might reduce Peaks Ice Arena revenue. Christofferson acknowledged Provo would receive property tax income and emphasized they're asking both cities to work together on tax sharing through the interlocal agreement because the development works better as a whole than separated. Christofferson noted developers have stepped aside to let the cities determine specifics.

A resident asked about likelihood of achieving an interlocal agreement and precedent for Provo-Springville tax revenue sharing. Aaron Ardmore responded that it's a priority for Provo to recommend approval, requiring both rezoning and general plan amendment. Staff support depends on achieving interlocal sales tax sharing. While this is a first-of-its-kind proposal without precedent, Provo's economic development director Cody Hill is working closely with Springville's city manager. Without the agreement, staff support would be impacted.

A Zoom participant asked about grocery store plans given South Provo's lack of nearby grocery options. Christofferson indicated they're looking at neighborhood grocery store possibilities and working through it.

One resident suggested running retail and condominiums parallel rather than stacking them, allowing access from both Main Street and 1400 South so both cities naturally get half of each. Christofferson said they would take it into consideration.

The final question asked about the Clyde headquarters shown on the map, with Christofferson confirming Clyde Companies has broken ground on their new headquarters there, not just a sales office. When asked how much Clyde would make from the development, Christofferson only responded they're "giving a lot back to the community on this one" without providing specific numbers.

-
- *ITEM 4** Eric Langvardt requests a Zone Map Amendment from the PIC (Planned Industrial Commercial) Zone to the MDR and CG Zones for 21.6 acres of land as part of a mixed-use development plan, located approximately at 3657 S Sierra Vista Way. Spring Creek Neighborhood. Aaron Ardmore (801) 852-6404 aardmore@provo.gov PLRZ20260006
-

APPLICANT:	Eric Langvardt
PROPERTY OWNER:	Springville Rising LLC
PARCEL ID:	23:014:0013; 47:358:0003; 23:002:0041
ACREAGE:	21.6
CURRENT LEGAL USE:	Vacant
GENERAL PLAN DESIGNATION:	Industrial (I)
CURRENT ZONE:	Planned Industrial Commercial (PIC)
APPLICATION TYPE:	Legislative Decision – Planning Commission will make a recommendation to the City Council.

PROPERTY HISTORY

The three properties included in this proposed project make up the southeast point of Provo City and have been zoned PIC since their inclusion into city boundaries. These vacant properties have no history of building permits or legal established uses but have been used for construction storage at times over the past twenty years.

NEIGHBORHOOD FEEDBACK

This proposal was introduced to the East District Neighborhood (formerly District 2) on October 15, 2025. The minutes of that discussion are attached to this report (attachment #3) and include resident concerns regarding lack of economic/sales tax benefit to Provo, balance of land uses, traffic, amenities, public benefits, and Provo identity.

PROJECT SUMMARY

The proposed project is a part of the vision from Clyde Companies that flows through Springville City and Provo City attempting to deliver a walkable, mixed-use corridor. The Provo portion of proposal includes approximately 9,960 square feet of retail space across 2.42 acres of proposed General Commercial (CG) Zoning, 90 condominium units and 168 townhome units over 19.2 acres of proposed Medium Density Residential (MDR) Zoning, and associated parking and amenity areas.

This proposal includes the concept plan referred to above, a General Plan Map Amendment to change the designation of the property from the Industrial (I) designation to the Mixed-Use (MU) designation, and this Zone Map Amendment from the PIC Zone to the MDR and CG Zones.

STAFF ANALYSIS

Before recommending an amendment, the Commission must find that the amendment serves the public interest and aligns with the General Plan, based on consideration of the following:

(a) Public purpose for the amendment in question;

Applicant Response: “The purpose of the requested rezone is to facilitate the development of Springville Rising, a compact, walkable mixed-use district that embodies the principles of sustainable urban design and smart growth.”

Staff Response: The proposed zone changes are needed to facilitate the development plan imagined with the concepts shown in the below attachment and described above.

FINDING: Meets standard.

(b) Confirmation that the public purpose is best served by the amendment in question;

Applicant Response: “The [proposed zoning] will allow for a greater diversity of land uses and housing types while enhancing pedestrian mobility, neighborhood connectivity, and economic vitality. In contrast, the existing Planned Industrial Commercial (PIC) zoning primarily accommodates industrial and large-format commercial uses that do not support the creation of a pedestrian-oriented, mixed-use environment.”

Staff Response: The proposed MDR and CG zones are the best fit to deliver the proposed development.

FINDING: Meets standard.

(c) Compatibility of the proposed amendment with General Plan policies, goals, and objectives;

Applicant Response: “The proposed amendment supports and advances the overarching goals and policies of the Provo City General Plan by:

- Encouraging mixed-use development patterns that integrate residential, commercial, and recreational opportunities within a cohesive urban framework that provides a sense of community and vibrant economy
- Fostering a sense of place and community identity through dynamic and safe public spaces for city residents
- Providing additional housing to build on the commitment to make Provo a desirable and attainable place to live
- Promote a connected network of streets, pedestrian trails, and bike lanes to efficiently move people and vehicles to enhance neighborhood accessibility and promote a dense and walkable community.”

Staff Response: The applicant has cited goals from the General Plan policies above from chapters 3, 4, 5, and 6 of the General Plan; and chapters 3 and 5 from the

Southeast Neighborhoods Plan.

FINDING: Meets standard.

(d) Consistency of the proposed amendment with the General Plan's "timing and sequencing" provisions on changes of use, insofar as they are articulated;

Applicant Response: No response.

Staff Response: There are no provisions for timing and sequencing articulated for this.

FINDING: Meets standard.

(e) Potential of the proposed amendment to hinder or obstruct attainment of the General Plan's articulated policies;

Applicant Response: "the amendment affects only a limited portion of the existing PIC district, ensuring that the broader industrial and commercial land use objectives of the area remain intact. This targeted change provides an opportunity to diversify the local economic base while enhancing the overall urban fabric of the community."

Staff Response: The proposal will reduce the available land for industrial development in the city. The Planning Commission and City Council will need to evaluate the benefits of this proposal against the economic development goals and policies related to industrial commercial development.

FINDING: May meet standard, depending on priorities.

(f) Adverse impacts on adjacent landowners; and

Applicant Response: No response.

Staff Response: Adjacent landowners include industrial users and vacant industrial land to the west and north in Provo, and residential and commercial uses to the east and south in Springville. Increased traffic in this area could be seen as an adverse impact of this proposal, but the traffic impact study has illustrated improvements to mitigate that.

FINDING: Meets standard.

(g) Verification of correctness in the original zoning or General Plan for the area in question.

Applicant Response: No response.

Staff Response: Staff have confirmed the General Plan and Zone Map designations are

correct.

FINDING: Meets standard.

(h) In cases where a conflict arises between the General Plan Map and General Plan Policies, precedence shall be given to the Plan Policies.

Applicant Response: No response.

Staff Response: Policies have taken precedence.

FINDING: Meets standard.

In addition to the criteria from Provo City Code 14.02 addressed above, the General Plan has established criteria for any zone change for residential development, found on page 45, as follows: (staff responses in **bold**)

- Would the rezone promote one of the top 3 housing strategies? **Yes**
 - Promote a mix of home types, sizes, and price points **Yes, there are a variety of townhome and condo layouts proposed in the concept plans.**
 - Support zoning to promote ADUs and infill development **No, building types would not permit ADU's and this would not be considered infill development.**
 - Recognize the value of single-family neighborhoods **Possibly, these units may take pressure off of over-occupying or densifying single-family neighborhoods.**
- Are utilities and streets currently within 300 feet of the property proposed for rezone? **Yes.**
- Would the rezone exclude land that is currently being used for agricultural use? **Yes.**
- Does the rezone facilitate housing that has reasonable proximity (1/2 mile) to public transit stops or stations? **Yes, UTA route 821 Main St / 1400 N stop is within a half-mile.**
- Would the rezone encourage development of environmentally or geologically sensitive, or fire or flood prone, lands? If so, has the applicant demonstrated these issues can reasonably be mitigated? **No.**
- Would the proposed rezone facilitate the increase of on-street parking within 500 feet of the subject property? If so, is the applicant willing to guarantee use of a TDM in relation to the property to reduce the need for on-street parking? **Maybe, though the concept provides more off-street parking than is required by code.**
- Would the rezone facilitate a housing development where a majority of the housing units are owner-occupied? **Unknown, the applicant has been informed of this priority.**
Is the applicant willing to guarantee such? **Unknown.**

- Would the proposed rezone facilitate a housing development where at least 10% of the housing units are attainable to those making between 50-79% AMI? Is the applicant willing to guarantee such? **Unknown, the applicant has been informed of this priority.**

POSSIBLE MOTIONS AND FINDINGS

The Planning Commission may make any of the following findings:

1. **Recommend Approval:** The proposal is consistent with the General Plan.
(Planning Commission recommends approval to the City Council of a Zone Map Amendment from the PIC Zone to the MDR and CG Zones for 21.6 acres of land located at 3657 S Sierra Vista Way)
2. **Recommend Denial:** The proposal is not consistent with the General Plan.
(Planning Commission recommends denial to the City Council of a Zone Map Amendment from the PIC Zone to the MDR and CG Zones for 21.6 acres of land located at 3657 S Sierra Vista Way)
3. **Continue:** New information presented at the public hearing or additional study needs to be done. *(The Planning Commission continues this item (state reasons))*

ATTACHMENTS

1. Current Zone Map
2. Concept Plan
3. Neighborhood Meeting Minutes

ATTACHMENT 1 – CURRENT ZONE MAP



ATTACHMENT 2 – CONCEPT PLAN



IRONTON

CONCEPT PLAN
PROVO REZONE
MAP DATE: 05.06.2026



SCALE: 1"=60'



ATTACHMENT 3 – NEIGHBORHOOD MEETING MINUTES

Proposed mixed use (residential and commercial) development project at State Street & Mountain Vista Parkway in the Spring Creek Neighborhood – Ryan Christofferson of Clyde Capital Group

Neighborhood Coordinator Rachel Breen noted this project is still in the idea phase.

Ryan Christofferson of Clyde Capital Group presented plans for approximately 40 acres on Provo's southeast corner extending into Springville, with half in each city. The overall vision includes a retail core with amenities like an ice rink and event lawn space to bring community together with retail, connected by pedestrian-friendly design to integrate the community with retail space.

On the Provo side, plans include 123 mid-density residentials (condominiums) in the northeast corner, surrounded by 174 townhomes, all for-sale products rather than rentals, plus 16,000 square feet of commercial space on the south end. The property is currently zoned industrial, and they seek mixed-use designation.

When asked for orientation, Christofferson clarified the location is west of State Street. Regarding retail type, he emphasized heavy food and beverage focus rather than general retail. The ice rink would be located in the area marked "community commons."

A South Provo resident expressed concern that all retail appears on Springville's side, meaning it won't appear in Google searches for South Provo and provides no sales tax benefit to Provo. Christofferson explained market demands drove the location at the busy 1400/State Street intersection, but acknowledged the concern about Provo getting all residential while Springville gets retail. He noted both cities are working on an interlocal tax-share agreement through their economic developers and city managers.

When asked if the ice rink would compete with Provo's Peaks Ice Arena, Christofferson said they just want an amenity bringing people to the food and beverage retail space for gatherings and events, mentioning possibilities like March Madness viewing on the event lawn.

Multiple residents raised concerns about sales tax revenue, with one directly asking what benefit Provo receives beyond condominiums when residents will shop in Springville and an ice rink might reduce Peaks Ice Arena revenue. Christofferson acknowledged Provo would receive property tax income and emphasized they're asking both cities to work together on tax sharing through the interlocal agreement because the development works better as a whole than separated. Christofferson noted developers have stepped aside to let the cities determine specifics.

A resident asked about likelihood of achieving an interlocal agreement and precedent for Provo-Springville tax revenue sharing. Aaron Ardmore responded that it's a priority for Provo to recommend approval, requiring both rezoning and general plan amendment. Staff support depends on achieving interlocal sales tax sharing. While this is a first-of-its-kind proposal without precedent, Provo's economic development director Cody Hill is working closely with Springville's city manager. Without the agreement, staff support would be impacted.

A Zoom participant asked about grocery store plans given South Provo's lack of nearby grocery options. Christofferson indicated they're looking at neighborhood grocery store possibilities and working through it.

One resident suggested running retail and condominiums parallel rather than stacking them, allowing access from both Main Street and 1400 South so both cities naturally get half of each. Christofferson said they would take it into consideration.

The final question asked about the Clyde headquarters shown on the map, with Christofferson confirming Clyde Companies has broken ground on their new headquarters there, not just a sales office. When asked how much Clyde would make from the development, Christofferson only responded they're "giving a lot back to the community on this one" without providing specific numbers.

ITEM 5 Eric Langvardt requests Concept Plan approval for a mixed-use development containing 90 condos, 168 townhomes, and approximately 10,000 sq. ft. of commercial space over 21.6 acres in proposed MDR and CG Zones, located approximately at 3657 S Sierra Vista Way. Spring Creek Neighborhood. Aaron Ardmore (801) 852-6404 aardmore@provo.gov PLCP20260011

APPLICANT:	Eric Langvardt
PROPERTY OWNER:	Springville Rising LLC
PARCEL ID:	23:014:0013; 47:358:0003; 23:002:0041
ACREAGE:	21.6
CURRENT LEGAL USE:	Vacant
GENERAL PLAN DESIGNATION:	Industrial (I)
CURRENT ZONE:	Planned Industrial Commercial (PIC)
APPLICATION TYPE:	Administrative Decision – must be approved if it meets all city standards.

PROPERTY HISTORY

The three properties included in this proposed project make up the southeast point of Provo City and have been zoned PIC since their inclusion into city boundaries. These vacant properties have no history of building permits or legal established uses but have been used for construction storage at times over the past twenty years.

NEIGHBORHOOD FEEDBACK

This proposal was introduced to the East District Neighborhood (formerly District 2) on October 15, 2025. The minutes of that discussion are attached to this report (Attachment 5) and include resident concerns regarding lack of economic/sales tax benefit to Provo, balance of land uses, traffic, amenities, public benefits, and Provo identity.

PROJECT SUMMARY

The proposed project is a part of the vision from Clyde Companies that flows through Springville City and Provo City attempting to deliver a walkable, mixed-use corridor. The Provo portion of proposal includes approximately 9,960 square feet of retail space across 2.42 acres of proposed General Commercial (CG) Zoning, 90 condominium units and 168 townhome units over 19.2 acres of proposed Medium Density Residential (MDR) Zoning, and associated parking and amenity areas.

The concept also shows new connections to Mountain Vista Parkway, State Street, and Sierra Vista Way. The connections to State Street and the overall access plan are currently being evaluated by UDOT and would require future meetings and approvals from that State agency. A

traffic impact study has been conducted for this project and recommended improvements are shown below in attachment #4

Finally, because the majority of the commercial uses in the overall “Springville Rising” concept sit in Springville and the bulk of the housing element is proposed in Provo, staff from both Springville and Provo are working through agreements to cooperate on an equitable sharing of sales tax revenues for the proposed project. This may involve an interlocal cooperation agreement, which both cities are amenable to and will continue to work towards.

STAFF ANALYSIS

Proposed Uses: General Retail, Restaurant, Condominiums, Townhomes

Finding: Complies.

MDR Zone

Lot Standards

Required:

- Lot area: 20,000 square feet
- Lot frontage: 35 feet
- Lot width: 40 feet
- Lot depth: 90 feet
- Lot coverage: 50% (max.)
- Density: 30 units/acre (max.)

Proposed:

- Lot area: 19.2 acres (836,352 square feet)
- Lot frontage: over 500 feet on each area
- Lot width: over 400 feet on each area
- Lot depth: 220-570 feet
- Lot coverage: 27%
- Density: 13.4 units/acre

Finding: Complies

Setback Requirements

Required:

- Front yard: 20 feet
- Side yard, street: 20 feet
- Side yard, interior: 10 feet
- Rear yard: 20 feet

Proposed:

- Front yard: 20-30 feet
- Side yard, street: 20-40 feet
- Side yard, interior: 13-32 feet
- Rear yard: 20-30 feet

Finding: Complies

Building Height and Distance

Required:

- Maximum building height: 45 feet
- Minimum distance between buildings: 15 feet

Proposed:

- Maximum building height: 24-44 feet
- Minimum distance between buildings: 15 feet

Finding: Complies

Parking and Access

Required: 582 stalls (2.25 per unit x 258 total 2-3 bed units)

Proposed: 659 stalls

Finding: Complies

Landscaping

Required: Project plans will need to meet Provo City Code 15.20.

Proposed: Details have not been provided at concept plan, but landscape space has been provided in the 9.39 acres of open space.

Finding: Unknown, but space provided in site plan would allow for compliance.

Design Standards

Required: Project plans will need to meet Provo City Code 14.34.287.

Proposed: Detailed architectural plans have not been provided at concept plan, but conceptual elevations and site plan show the ability to meet the standard.

Finding: Ability to Comply

Amenity Requirements

Required: 54,056 square feet

Proposed: 77,148 square feet

Finding: Complies

CG Zone

Lot Standards

Required:

- Lot area: No requirement
- Lot frontage: 35 feet
- Lot width: No requirement
- Lot coverage: No requirement
- Zone area: 2 acres

Proposed:

- Lot area: 2.42 acres
- Lot frontage: 130 feet
- Lot width: 130 feet
- Lot coverage: 10%
- Zone area: 2.42 acres

Finding: Complies

Setback Requirements

Required:

- Front yard: 10 feet
- Side yard, street: 10 feet
- Side yard, interior: 10 feet
- Rear yard: No requirement

Proposed:

- Front yard: 10 feet
- Side yard, street: 10 feet
- Side yard, interior: 15 feet
- Rear yard: N/A

Finding: Complies

Building Height and Distance

Required:

- Maximum building height: No requirement
- Minimum distance between buildings: No requirement

Proposed:

- Maximum building height: 21 feet
- Minimum distance between buildings: 59 feet

Finding: Complies

Parking and Access

Required:

- Building G: 34 stalls (2,400 square feet restaurant @ 1/100 square feet + 2,000 square feet retail @ 1/200 square feet)
- Building H: 60 stalls (4,545 square feet restaurant + 3,000 square feet retail)
- TOTAL: 94 stalls

Proposed: 146 stalls (shared with Springville)

Finding: Complies

Landscaping

Required: Project plans will need to meet Provo City Code 15.20.

Proposed: Details have not been provided at concept plan, but landscape space has been provided in the 9.39 acres of open space.

Finding: Unknown, but space provided in site plan would allow for compliance.

Other Considerations

SOUTH STATE STREET DESIGN CORRIDOR

Building Location

Required: Minimum 10 feet / Maximum 20 feet from front or street side yard

Proposed: 30 feet for residential buildings; 208 feet for commercial building G

Finding: Does not Comply

COORDINATOR REVIEW COMMITTEE (CRC) COMMENTS

The following issues have been identified in the concept plan by other departments outside of Development Services to be addressed after the zone change decision:

- **Public Works:** Many of the concerns raised during concept plan review will be addressed during project plan review. Provide additional clarity on the following two items:
 1. Provide narrative of storm water management confirming that discharge from Springville will be limited to historical capacity of 18-inch line east of State Street and that no new water from State Street will be discharged through the development and connected to the existing Provo City outfall line. Clarify whether storm drainage infrastructure will be constructed in State Street.
 2. Limit movements on new proposed access road south of Mountain Vista Parkway to right-in, right-out movements only.

APPLICABLE ZONING CODES

Provo City Code 14.14B (MDR Zone) <https://provo.municipal.codes/Code/14.14B>

Provo City Code 14.22 (CG Zone) <https://provo.municipal.codes/Code/14.22>

Provo City Code 14.34.290(4) (South State Street Design Corridor)
<https://provo.municipal.codes/Code/14.34.290>

POSSIBLE MOTIONS AND FINDINGS

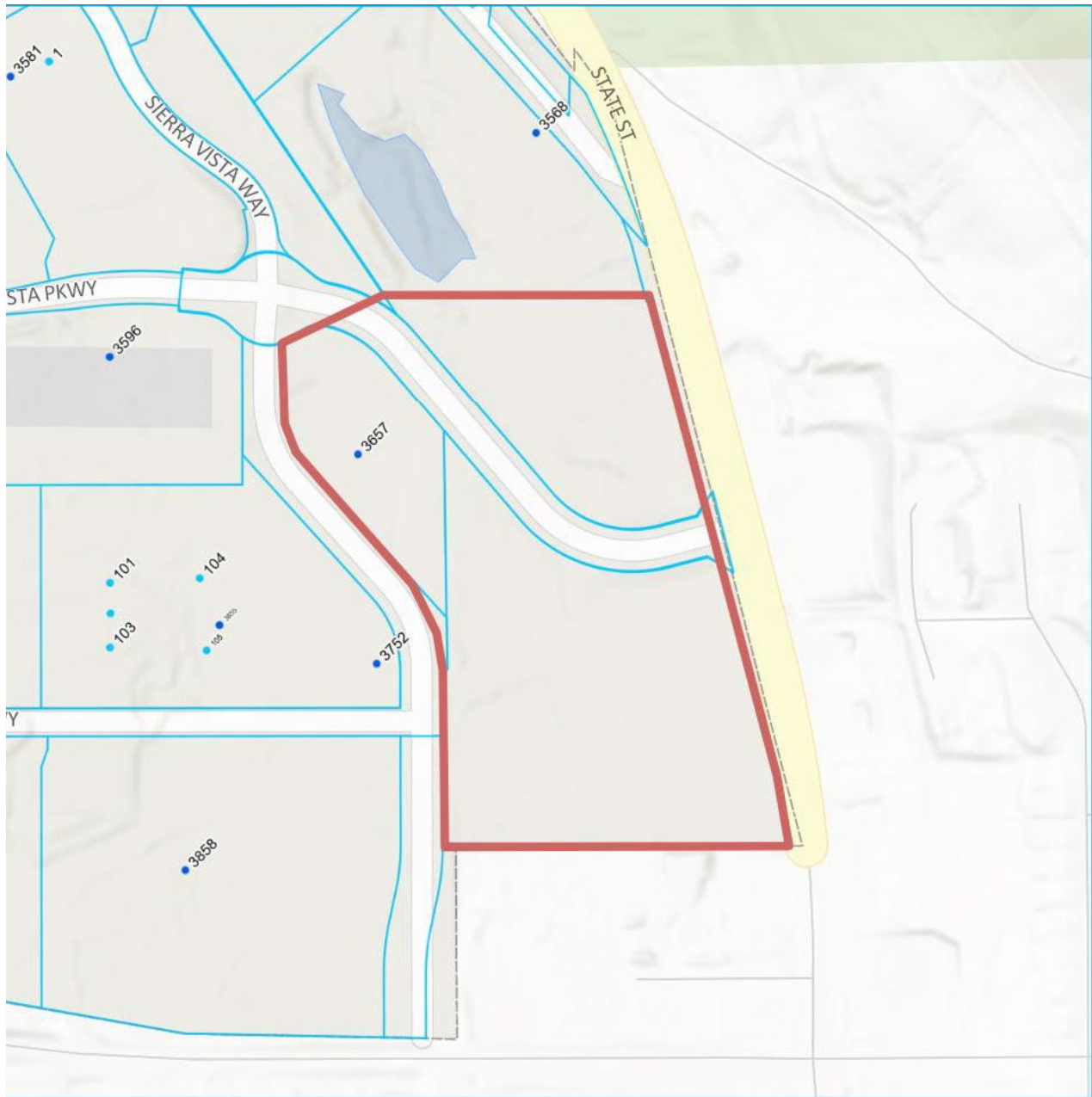
The Planning Commission may make any of the following findings:

1. **Approve:** The proposal is consistent with city code. (*The Planning Commission approves the proposed concept plan, subject to the associated General Plan Map and Zone Map Amendments being approved by the City Council.*)
2. **Deny:** The proposal is not consistent with city code. (*The Planning Commission denies the proposed concept plan (state findings)*)
3. **Continue:** New information presented at the public hearing or additional study needs to be done. (*The Planning Commission continues the proposed concept plan (state findings)*)

ATTACHMENTS

1. Area Map
2. Concept Site Plan
3. Concept Parking Plan
4. Traffic Impact Study Recommendations
5. Neighborhood Meeting Minutes

ATTACHMENT 1 – AREA MAP



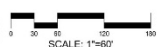
ATTACHMENT 2 – CONCEPT SITE PLAN



IRONONTON

CONCEPT PLAN
PROVO REZONE

MAP DATE: 05.06.2025



SCALE: 1"=60'





ATTACHMENT 4 – TRAFFIC IMPACT STUDY RECOMMENDATIONS

Provo & Springville Rising TIS
Mitigated Roadway Network

Figure ES-1



ATTACHMENT 5 – NEIGHBORHOOD MEETING MINUTES

Proposed mixed use (residential and commercial) development project at State Street & Mountain Vista Parkway in the Spring Creek Neighborhood – Ryan Christofferson of Clyde Capital Group

Neighborhood Coordinator Rachel Breen noted this project is still in the idea phase.

Ryan Christofferson of Clyde Capital Group presented plans for approximately 40 acres on Provo's southeast corner extending into Springville, with half in each city. The overall vision includes a retail core with amenities like an ice rink and event lawn space to bring community together with retail, connected by pedestrian-friendly design to integrate the community with retail space.

On the Provo side, plans include 123 mid-density residentials (condominiums) in the northeast corner, surrounded by 174 townhomes, all for-sale products rather than rentals, plus 16,000 square feet of commercial space on the south end. The property is currently zoned industrial, and they seek mixed-use designation.

When asked for orientation, Christofferson clarified the location is west of State Street. Regarding retail type, he emphasized heavy food and beverage focus rather than general retail. The ice rink would be located in the area marked "community commons."

A South Provo resident expressed concern that all retail appears on Springville's side, meaning it won't appear in Google searches for South Provo and provides no sales tax benefit to Provo. Christofferson explained market demands drove the location at the busy 1400/State Street intersection, but acknowledged the concern about Provo getting all residential while Springville gets retail. He noted both cities are working on an interlocal tax-share agreement through their economic developers and city managers.

When asked if the ice rink would compete with Provo's Peaks Ice Arena, Christofferson said they just want an amenity bringing people to the food and beverage retail space for gatherings and events, mentioning possibilities like March Madness viewing on the event lawn.

Multiple residents raised concerns about sales tax revenue, with one directly asking what benefit Provo receives beyond condominiums when residents will shop in Springville and an ice rink might reduce Peaks Ice Arena revenue. Christofferson acknowledged Provo would receive property tax income and emphasized they're asking both cities to work together on tax sharing through the interlocal agreement because the development works better as a whole than separated. Christofferson noted developers have stepped aside to let the cities determine specifics.

A resident asked about likelihood of achieving an interlocal agreement and precedent for Provo-Springville tax revenue sharing. Aaron Ardmore responded that it's a priority for Provo to recommend approval, requiring both rezoning and general plan amendment. Staff support depends on achieving interlocal sales tax sharing. While this is a first-of-its-kind proposal without precedent, Provo's economic development director Cody Hill is working closely with Springville's city manager. Without the agreement, staff support would be impacted.

A Zoom participant asked about grocery store plans given South Provo's lack of nearby grocery options. Christofferson indicated they're looking at neighborhood grocery store possibilities and working through it.

One resident suggested running retail and condominiums parallel rather than stacking them, allowing access from both Main Street and 1400 South so both cities naturally get half of each. Christofferson said they would take it into consideration.

The final question asked about the Clyde headquarters shown on the map, with Christofferson confirming Clyde Companies has broken ground on their new headquarters there, not just a sales office. When asked how much Clyde would make from the development, Christofferson only responded they're "giving a lot back to the community on this one" without providing specific numbers.